

«REFERENCE_CODE»

30 SEPTEMBER 2024

Mr. PAWAN SINGH

Employee Code -**MSP029**

Letter of Appointment

Dear MR. **PAWAN SINGH**,

With reference to your application, subsequent interviews and our discussions, we are pleased to appoint you for the position of **DEPUTY MANAGER - DIGITAL MARKETING** at our Ghaziabad office. Your appointment is with effect from **10 SEPTEMBER 2024**.

The terms of your employment with our organization are in this appointment letter.

1. **References:-** Your appointment is subject to verification of your educational certificates, qualifications and the submission of a copy of relevant documentation on your date of joining. Your employment is subject to references and background checks being obtained to the satisfaction of the organization. If, any declaration given or information furnished by you to the organization proves to be false or if you are found to have wilfully suppressed any material information, you are liable to be terminated from the services of the organization without any notice or compensation whatsoever.
2. **Compensation:-** Your Total Annual Fixed Remuneration will be **INR 480000.00** per annum subject to deduction of applicable statutory taxes. Your Cost to Company Package and Reimbursements (if any) shall be mentioned in the Annexure 1 of Appointment Letter or Service Agreement whichever is applicable.
 - a. The emoluments/benefits due to you will be liable/subject to tax in accordance with the provisions of the Income Tax Act and Rules made there under as also other applicable laws, if any, as may be in force from time to time.
 - b. The Company lays emphasis on all statutory compliances and you should ensure compliance with various statutes in your area of operations including Insider Trading Regulations.
 - c. Annual Increments will be based upon your performance and you will be entitled the same if, your performance is found to be satisfactory during the year of service with us. This shall be at the sole discretion of the management.
 - d. The variable pay component, if, any included in your compensation is totally dependent on:-
 - I. Desirable & Satisfactory performance of your key result areas.
 - II. Your function/department/team establishing and effecting a desirable and satisfactory performance in all parameters in respect of their key result areas.
 - III. The overall performance of the organization.
3. **Hours of Work:-** The Company's core hours of operation are Monday to Friday from 09:30 AM to 06:15 PM. Every Sunday & Saturday are weekly off, of the month. Your hours of operation and working days at work may at the option of the company be changed at any time depending on the business exigencies.
4. **Posting & Transfer:-** You will be posted at our "**Sahibabad**" and will be reporting to "**MANMEET KAUR**". You are liable to be transferred from one department to another or to any associate establishment in which organization has got pecuniary interest or otherwise which exists at present or which may be opened or started henceforth anywhere in India. In case of such transfer, you will abide by the working hours of specific department, office or establishment etc. concerned without any compensation or extra remuneration.

The refusal of such transfer on your part turns to resignation and you shall be deemed to have resigned from the services without notice from the organization from the date of refusal of such transfer.

5. **Probation & Confirmation:-** You shall be on probation for a period of 6 months from date of joining. On satisfactory completion of probation, you will be considered for confirmation but will not be deemed to be confirmed until a letter of confirmation is issued to you in writing by the organization. This period may be extended at the sole and absolute discretion of the organization.

During this period of probation, your services may be terminated by the organization without assigning any reason or payment in lieu of notice.

During the period of probation your services may be voluntarily terminated by you by giving 15 days notice or payment of last drawn basic salary for 15 days as compensation in lieu thereof.

After Confirmation of your services and during the period of employment, the organization have right to terminate your services by giving 1 months' notice or on payment of last drawn basic salary of 1 month in lieu of notice period.

After confirmation you may terminate your contact of employment with the organization by giving one month notice or on payment of last drawn basic salary of 1 month in lieu of notice on discretion of management. Serving of "Notice period is mandatory and it has to be served in full as per standard organization policy for appropriate handover unless otherwise agreed by the management. In case of default in serving the notice period and leaving the organization without appropriate intimation. The management reserves the right to withhold the last drawn 1 month basic salary as also to take legal action, for such uninformed departure from the organization.

6. Separation-

- I. In addition to the aforesaid, your services are further liable to be terminated in the following manner:
 - a) Wilfully disobey a lawful & reasonable assigned work.
 - b) Found you conducting unethical practices on work like, Verbal Harassment/Abuse, Disrespecting Colleagues, Violence, Non-Office related work in Office hours, Extended Breaks, Theft/Embezzlement, Sexual Harassment, Misuse of Company time, lying to Employees, mis-using Company's property, being drunk or under the influence of drugs at work.
 - c) Are guilty of fraud & dishonesty like mis-using company confidential data, stealing petty cash, using office supplies for personal use, stealing from colleagues, Fraudulent expenses claiming, making gain from industrial espionage, falsifying work documents, using office premises for fraudulent or personal use, Using company Internet for unofficial work activity.
 - d) Found Humiliating, accusing or blaming a colleague, making offensive remarks, unfairly persistently pointing out that a colleague is incompetent, pressurising someone, directly or indirectly, to withhold their rights (such as travel expenses, leave, Salary).
 - e) Are habitually neglectful/Irresponsible in your duties or done a gross Misconduct, which may cause damage to the workplace or items in the workplace or any monetary or reputation loss to Company.
 - f) Found taking unreasonable/justifiable leave or leave without intimation,
 - g) Commit any breach of any legal provision of company's internal regulations.
 - h) Have deliberately supplied any incorrect & misleading information during the interview, application form or during your employment with company like Marital status, Previous Employment Salary, Job responsibility, educational qualification, Details about family members, work Experience, health Condition etc.
- II. The normal age of retirement of an employee from the services of the organisation is 60 years, if, the employee continues to be physically and mentally fit for employment subject to medical opinion. The employee may be asked to retire before completing the age of 60 years if, she /he is found unfit for service due to physical or mental disability.
- III. All official materials and documents including identity card, punching card, manual, visiting Cards, laptop, phones, SIM card, software documents, I-card, or any company owned phone/phone SIM card etc. furnished to you shall remain the property of the management. Upon acceptance of your resignation or termination of services, you are required to handover charge to the person designated by the Management with all documents, diaries, notes, computer access codes, correspondence and any other office property including all movable and immovable in your possession.

You will not take, delete, alter, record, copy, summaries or disclose any confidential information to third party in any form after your termination. In case of violation organisation can take legal action against you.
- IV. Without prejudice to the organization's other rights and remedies, the organization shall be entitled to deduct from your emoluments, if any herein, the amount of any

claims which the organization may have against you either under the terms of your employment or otherwise howsoever.

7. Duties & Responsibilities: -

- You will perform such duties as are assigned or communicated to you by the management of the Company from time to time.
- As per the requirements of your position, you will be expected to travel as per agreement of your duties.
- While employed by the Company, you agree to work on a full-time basis (exclusively for the Company) and agree that you shall not (while you are employed by the Company) be employed or engaged in any capacity, in promoting, undertaking or carrying on any other business that competes with the Company or interferes or could reasonably interfere with your duties to the Company without our prior written permission.

8. Non Solicitation: - You hereby agree that, while you are employed by Company as per Employee Bond agreement (if, requires). You will not directly or indirectly canvass or interfere with any customer or supplier of Company in a manner that conflicts with or interferes in the business of Company as conducted with such customer or supplier.

9. Leave & Travel:- Leave & Travel policy will be followed as per the HR policy and can be changed time to time as per the requirements or conditions.

10. Sales Incentives: Sales incentives will be paid by end of every quarter (e.g. Q1 sales incentives will be paid by 1st week of July) after your confirmation with company. In case of resignation the sales commission will be paid for the payment received by company till your last working day with company.

11. Confidentiality: - During your employment with company you shall come in contact & knowledge of various business /trade secrets, confidential data/details/information related to technology and processes, method & system know-how used by the company & its market details, customer profile and their financial reports which are exclusive & vital to the working of the company and should not be divulged by you. For your functional development the company would have trained you in expertise business area by incurring considerable expense & Managements time, hence in any event of employment with the company or thereafter for any reason whatsoever, you will not directly or indirectly disclose any information to any competitor or third party.

12. Anti-discrimination: - The Company is equal opportunity employer & does not permit discrimination on the ground of sex, race, pregnancy, marital or Family status or any other grounds.

13. Severability: - If any clause of this letter is held to be in valid or unenforceable in whole or in part, the remaining provisions of this letter shall continue in full force & effect.

14. FNF (Full & final) Settlement: - Full & Final Settlement will be done as per below from the date of acceptance by the Management on the resignation:

- Non Confirmed Employees: Within 15 Days
- Confirmed Employees: Within 45 Days

We welcome you aboard & wish you a long & Happy Association with Company.

Please sign the duplicate copy of this letter and return to us as a token of your acceptance of the terms and conditions of employment offered to you.

Acknowledgment by the Employee

I acknowledge receiving a copy of Appointment Letter and Employment Terms and conditions relating to all incidents of my employment with the company and after having read and understood and comprehended the contents and implications therein, I am satisfied and agree to abide by them.

Employee Name : **PAWAN SINGH**

Employee Signature: _____

For **MANGO SEMICONDUCTORS INDIA PVT. LTD.**

Director

HR Department

Annexure I

Compensation break-up for “ PAWAN SINGH”, MSP029-

01 September 2024

CTC	480000.00
Gross Benefit Amount	36847.00
Other Benefits	583.00
Contribution Amount	2570.00
Recurring Deduction Amount	1800.00
Net Take Home Before Tax	35047.00

GROSS BENEFITS			
COMPONENT NAME	NATURE OF COMPONENT	MONTHLY REMUNERATION	YEARLY REMUNERATION
Basic	Fixed	16000.00	192000.00
HRA	Fixed	6400.00	76800.00
Conveyance Allowance	Fixed	1600.00	19200.00
Special Allowance	Fixed	12847.00	154164.00

OTHER BENEFITS			
COMPONENT NAME	NATURE OF COMPONENT	MONTHLY REMUNERATION	YEARLY REMUNERATION
Monthly Diwali Bonus	Fixed	583.00	6996.00

CONTRIBUTION		
COMPONENT NAME	MONTHLY CONTRIBUTION	YEARLY CONTRIBUTION
Employer PF	1800.00	21600.00
Gratuity	770.00	9240.00

RECURRING			
COMPONENT NAME	NATURE OF COMPONENT	MONTHLY REMUNERATION	YEARLY REMUNERATION
Employee PF	Fixed	1800.00	21600.00